

As to who has the right to begin on the argument of the objection, the cases differ. See *Bradstock vs. Whatley*, 6 Beaven, 451; *Attorney General vs. Gardner*, 2 Collyer, 564; *Lovelt vs. Andrew*, 11 Jurist, 835.

January, 1842. When the objection is not taken before the hearing, the Court has a discretionary power to make a decree without prejudice to the absent parties,

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Decree saving
rights of absent
parties.

That, if a defendant shall at the hearing of a cause object that a suit is defective for want of parties not having by plea or answer taken the objection and therein specified by name or description the parties to whom the objection applies, the Court (if it shall think fit) shall be at liberty to make a decree saving the rights of absent parties.

Such decrees
rare.

It may be here observed that the Court seldom exercises this power, and more frequently adjourns cases to have parties added, although the objection has been taken neither by answer nor on the argument. It is always safe therefore to amend the record as soon as any defect for want of parties is apprehended.

The Order is copied from the English Order 40 of 1841.

The Court will be careful not to make the decree, if by it the absent party may be in any way prejudiced. (*Kimber vs. Emsworth*, 1 Hare, 293; *May vs. Selby*, 1 Younge and Collyer, 235; *Faulkner vs. Daniel*, 3 Hare, 199).

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